

24TRCV00737 24TRCV00737

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24TRCV00737 Hearing Date: August 27, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

HIJAZ

HIJAZ, SAMIRA HIJAZ, and MALAK HIJAZ, individuals

Plaintiffs,

Case No.:

24TRCV00737

vs.

[Tentative]

Granted in part

LAST

CHANCE STORE, LLC.; AHM LIQUIDATION, INC.; BEYOND GALLERIA, INC.; BEAUTY
BARGAIN, LLC.; BEAUTY BARGAINS, INC.; BEAUTY BARGAINS, INC.; BEAUTY VILLAGE,

INC.; CALI'S BEAUTY SUPPLY, INC.; BAHA SHEHAB; HUSSEIN HIJAZ; ASHRAF FAHAD HIJAZ; and DOES 1 to 100,

Defendants.

Hearing

Date: August
27, 2026

Moving Parties: Plaintiffs Hijaz Hijaz, Samira Hijaz,
and Malak Hijaz

Responding Party: Defendants Last Chance Store LLC, Baha A.
Shehab, Hussein Hija, and Ashraf Fahad Hijaz

HEARING: Motion to Quash Subpoenas

The Court considered the moving,
opposition, and reply papers.

RULING

The Court grants
the Motion to Quash Subpoenas in part and limits the subpoenas to information
regarding Defendant Samira Hijaz's payroll and eligibility records.

BACKGROUND

On March

1, 2024, Plaintiffs

Hijaz Hijaz, Samira Hijaz, and Malak Hijaz filed a complaint against Defendants Last Chance Store, LLC., Ahm Liquidation, Inc., Beyond Galleria, Inc., Beauty Bargain, LLC., Beauty Bargains, Inc., Beauty Bargains, Inc., Beauty Village, Inc., Cali's Beauty Supply, Inc., Baha Shehab, Hussein Hijaz, Ashraf Fahad Hijaz, And Does 1 To 100. The complaint alleges failure to pay minimum wages, failure to pay overtime wages, failure to provide meal periods, failure to provide rest periods, failure to provide accurate itemized statements, failure to reimburse employees for required expenses, failure to provide wages when due, failure to split shift premium, unfair competition, failure to produce personal and payroll records, misclassification of employees, and violation of whistleblowing law.

On May 7, 2026,
Defendants issued a Deposition Subpoena for Production of

Business Records to the California Department of Social Services.

On May 29, 2026,
Plaintiffs filed the Motion to Quash Subpoena.

On August 12, 2026,
Defendants filed the Opposition.

On August 20, 2026,
Plaintiff filed the Reply.

LEGAL STANDARD

California
Code of Civil Procedure section 1987.1, subdivision (a) provides:¿

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If a subpoena requires the attendance of a
witness or the production of books, documents, or other things before a court,
or at the trial of an issue therein, or at the taking of a deposition, the
court, upon motion reasonably made by any person described in subdivision (b),
or upon the court's own motion after giving counsel notice and an opportunity
to be heard, may make an order quashing the subpoena entirely, modifying it, or
directing compliance with it upon those terms or conditions as the court shall
declare, including protective orders. In addition, the court may make any other
order as may be appropriate to protect the person from unreasonable or
oppressive demands, including unreasonable violations of the right of privacy
of the person.¿

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(Code of Civ. Proc., § 1987.1 subd. (a).)

There is no requirement that the motion
contain a meet and confer declaration. (See Code of Civ. Proc., § 1987.1.) A

motion to quash the production of documents or tangible things at deposition must be accompanied by a separate statement. (CRC Rule 3.1345(a)(5).)¿

The right of privacy of individuals is protected by the California Constitution. (Cal. Const., Art. I, § 1.) In ruling on discovery motions, the Court must balance the privacy claims of the responding party with the requesting party's need for the information. (Schnabel v. Superior Court (1993) 5 Cal.4th 704, 718-722.)¿

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“[P]laintiffs are ‘not obligated to sacrifice all privacy to seek redress for a specific [physical,] mental or emotional injury’; while they may not withhold information which relates to any physical or mental condition which they have put in issue by bringing [a] lawsuit, . . . they are entitled to retain the confidentiality of all unrelated medical or psychotherapeutic treatment they may have undergone in the past.” (Britt v. Superior Court (1978) 20 C.3d 844, 864, citation and footnote omitted.)¿However, “. . . privacy interests may have to give way to [an] opponent's right to a fair trial.¿Thus, courts must balance the right of civil litigants to discover relevant facts against the privacy interests of persons subject to discovery.” (Vinson v. Superior Court (1987) 43 Cal.3d 833, 842.)

DISCUSSION

Plaintiffs argue that the Court should quash or substantially limit Defendants' subpoenas. Plaintiffs argue that the subpoenas seek expansive categories of confidential governmental and personal records concerning Plaintiff Samira Hijaz and non-party Hanieh Abdelhadi, including IHSS records, payroll information, eligibility records, correspondence, and investigative materials, and that they are facially overbroad, exceed the permissible scope of discovery, and are not tailored to any claim or defense, especially where Defendants already explored these matters at Plaintiff Samira Hijaz's July 22, 2025 deposition.

Plaintiffs further argue that the subpoenas invade their constitutional right of privacy, which is broader than its federal counterpart. (City of Santa Barbara v. Adamson (1980) 27 Cal.3d 123, 130, fn. 3.) They note that any intrusion into a protected

privacy interest must be justified by a compelling interest. (White v. Davis (1975) 13 Cal.3d 757, 775.) Plaintiffs contend that they have a legally protected privacy interest and a reasonable expectation of privacy in these sensitive records and that disclosure would be a serious invasion. (Hill v. National Collegiate Athletic Assn. (1994) 26 Cal.Rptr.2d 834, 865.) They add that the balancing of interests and the availability of less intrusive means, already used by Defendants, weigh in favor of quashing. (Williams v. Superior Court (2017) 3 Cal.5th 531.)

Plaintiffs finally argue that the subpoenas are impermissibly vague, ambiguous, and overbroad because they are so wide in scope that they compel production of irrelevant material. (Ryan v. Superior Court (1960) 186 Cal.App.2d 813, 817.) They contend that the categories must be reasonably particularized and that a subpoena is unenforceable when it effectively demands everything in the custodian's possession without regard to relevance. (Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 222, 223.) They add that a subpoena must clearly identify the categories sought and limit its requests in scope and time. (People ex rel. Bonta v. GreenPower Motor Co., Inc. (2025) 113 Cal.App.5th 43.) Because the subpoenas instead seek any and all records accumulated over substantial periods, Plaintiffs conclude that they are facially overbroad and unduly burdensome and should be quashed or substantially limited.

In opposition, Defendants argue that the subpoenaed IHSS records are directly relevant to matters Plaintiffs themselves placed in controversy. They contend that by suing and testifying about the parties' financial arrangements, Defendant Samira Hijaz effected a partial waiver of privacy, and that a court may compel disclosure of information directly relevant to a claim and essential to a fair resolution. (Britt, supra, 20 Cal.3d 844, 859.) They add that a party who places her own condition in controversy may not invoke privacy to shield directly relevant discovery. (Vinson, supra, 43 Cal.3d 833, 842.) Defendants contend the records support their partnership and ownership defense, because Plaintiffs' names were allegedly omitted from the entity's formation documents to protect Plaintiff Samira Hijaz's State benefits, as shown by testimony that she invested \$70,000 for Plaintiff Hijaz to become a partner, that he held a 33 percent interest and managed the store, and that she refused to let him sign a partnership agreement to avoid losing those benefits. They argue the records are also relevant to

impeachment because Plaintiff Samira Hijaz denied their account under oath, while two witnesses testified to the contrary, and Plaintiff Hijaz Hijaz gave inconsistent testimony about his own status. They further contend the records bear on hours worked and damages, because the days and hours the State authorized and paid Plaintiff Samira Hijaz to provide care test whether she could have worked the six-to-seven-day store schedule she alleges.

Defendants argue

that the privacy objection does not warrant quashing. They contend the Supreme Court rejected a categorical compelling-interest rule for ordinary discovery and placed the burden on the party asserting privacy to show the extent and seriousness of the invasion, with a compelling interest required only for obvious invasions of interests fundamental to personal autonomy. (Williams, supra, 3 Cal.5th 531, 557.) Defendants argue that Plaintiff Samira Hijaz cannot allege a six-to-seven-day workweek and a \$70,000 investment, deny the benefits explanation under oath, and still shield the records that test those assertions, and that the intrusion is not serious given the defined subject and their offer of redactions and a protective order.

Last, Defendants

argue that the subpoenas are reasonably particularized because they are confined to a single, defined subject and organized into discrete categories, rather than seeking everything in the custodian's possession. Finally, Defendants argue that their questioning of Plaintiff Samira Hijaz at her deposition does not bar third-party records, because interested-party testimony is not a substitute for contemporaneous documents and nothing in the Discovery Act forecloses documentary discovery merely because a topic was raised at deposition.

Here, Plaintiffs'

separate statement describes the subject discovery as "The subpoena seeks broad categories of records concerning Plaintiff Samira Hijaz and non-party Hanieh Abdelhadi, including but not limited to IHSS records, payroll information, eligibility records, correspondence, investigative materials, household composition records, provider records, payment records, and related governmental records." The Court finds that Plaintiffs have put Plaintiff

Samira Hijaz's payroll and eligibility records in controversy by filing the instant lawsuit, which alleges that she worked six to seven days a week while simultaneously authorized and paid by the State to provide IHSS care. (Vinson, supra, 43 Cal.3d 833, 829.) However, as the scope of the waiver imposed by

the filing of a lawsuit is to be narrowly construed, the Court finds that the subpoena requests related to non-party Hanieh Abdelhadi and the requests related to Plaintiff Samira Hijaz, not regarding payroll and eligibility records, are protected privacy interests that Defendants have not shown a substantial justification for the discovery of. (Britt, *supra*, 20 Cal.3d 844, 859.)

Therefore, the Court grants the Motion to Quash Subpoenas in part and limits the subpoenas to information regarding Defendant Samira Hijaz's payroll and eligibility records.